

24STCV23247 24STCV23247

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-03

Motion: DEFENDANT'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION OF ISSUES

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Case Number: 24STCV23247 Hearing Date: September 3, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS

ANGELES - CENTRAL DISTRICT

ZAKI SALEH MANSOUR, an

individual;

Plaintiff,

vs.

MID-CENTURY INSURANCE COMPANY,

a California Corporation and a subsidiary of FARMERS INSURANCE, and Does 1

through 10, inclusive,

Defendants.

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CASE NO: 24STCV23247

[TENTATIVE] ORDER RE: DEFENDANT'S
MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION OF
ISSUES

Dept. 731

September 3, 2026

8:30 a.m.

Matter No. 19

Moving Party: Defendant, Mid-Century Insurance Company

Opposing Party: Plaintiff, Zaki Saleh Mansour

Notice: OK

Background Facts

Plaintiff Zaki Saleh Mansour brings this verified action against Mid-Century Insurance Company (a Farmers subsidiary) and Doe Defendants in connection to insurance coverage for three automobile accidents occurring on September 2, 2023, September 9, 2023, and November 29, 2023. Specifically, Plaintiff alleges causes of action for breach of contract (three total, one claim for each accident), breach of the implied covenant of good faith and fair dealing (contractual and tortious), insurance bad faith, and financial elder abuse. The claims arise from allegations that Defendants wrongfully failed to investigate Plaintiff's claims, misrepresented coverage, denied benefits, mishandled documentation, and engaged in oppressive and malicious conduct causing significant monetary losses, emotional distress, and exposure to third-party liability. Plaintiff prays for general and special damages, punitive damages, treble damages under Civil Code section 3345, and attorney's fees.

Now before the Court is Defendant's opposed motion for summary judgment or, in the alternative, summary adjudication of all seven claims alleged in the Complaint.

Motion for Summary
Judgment or, in the Alternative, Summary Adjudication

a. Evidentiary
Objections

NOT ADDRESSED (Code Civ. Proc., §
437c, subd. (q)): All objections.

SUSTAINED: None.

OVERRULED: None.

b. Legal
Standard

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact for trial or that the moving party is entitled to a judgment as a matter of law. (Code of Civ. Proc., § 437c, subd. (c).) A party may also seek summary adjudication of select causes of action, affirmative

defenses, claims for damages, or issues of duty, which may be made by a standalone motion or as an alternative to a motion for summary judgment and proceeds in all procedural respects like a motion for summary judgment, but which must completely dispose of the challenged cause of action, affirmative defense, claim for damages, or issue of duty. (Code Civ. Proc., § 437c, subds. (f)(1)-(2), (t).)

The moving party bears the initial burden of production to make prima facie showing no triable material fact issues. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) This burden on summary judgment or adjudication “is more properly one of persuasion rather than proof, since he must persuade the court that there is no material fact for a reasonable trier of fact to find, and not to prove any such fact to the satisfaction of the court itself as though it were sitting as the trier of fact.” (*Id.* at p. 850, fn. 11.) If the moving party meets this burden, the burden shifts to the opposing party to make a rebuttal prima facie showing that a triable issue of material fact exists. (*Id.* at p. 849.)

Where a defendant seeks summary judgment or adjudication, the defendant must show that either “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action.” (Code Civ. Proc., § 437c, subd. (o)(2).) A defendant may satisfy this burden by showing that the claim “cannot be established” because of the lack of evidence on some essential element of the claim. (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 574, 590.) Once the defendant meets this burden, the burden shifts to the plaintiff to show that a “triable issue of one or more material facts exists as to that cause of action or defense thereto.” (*Ibid.*)

“[I]n ruling on motions for summary judgment courts are to “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” [Citations].” (*Cheal v. El Camino Hospital* (2014) 223 Cal.App.4th 736, 760.)

c. Discussion

Here, for procedural reasons not raised by the parties, and for substantive reasons reflected in the papers, the Court DENIES Defendant’s motion.

i. Procedural

Grounds

1. Timeliness

A notice of motion for summary

judgment and/or adjudication and supporting papers must be served on all other parties to the action at least 81 days before the time appointed for hearing.

(Code Civ. Proc., § 437c, subd. (a)(2).) If the notice is served by mail, the required 81-day period of notice must be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice must be increased by two court days. (Ibid.)

Here, there is a lack of clarity as

to manner and date of service of Defendant's motion, lending confusion to the question of whether Defendant's motion is untimely. All seven of the proofs of service attached to Defendant's moving papers fail to show at § 5 whether service was effected in person, via mail, via electronic mail, or via other means. (See, e.g., Motion, Separate Statement, Proof of Service, § 5.)

If, and only if service was

effected in person, then the motion (filed on June 12, 2026) was timely, as the motion is being heard on September 3, 2026, 81 days prior to which was Sunday, June 14, 2026, pushing the 'final date of performance' to Friday, June 12, 2026, by operation of law. (Code Civ. Proc., §§ 10, 12, 12a, 12c.) However, all this assumes personal service.

However, if the motion was served

by any other means, then it was due 81 days prior to September 3, 2026, i.e., Sunday, June 14, 2026, with operation of law pushing the 'last day of performance' to Friday, June 12, 2026, and service by any means other than personal service adding at least two court days to the calculation, pushing the final filing date to, at a minimum, Wednesday, June 10, 2026.

Given that Defendant's own papers

are responsible for this confusion, the Court opts to find the motion untimely for failure to establish timely service and filing, which Defendant may dispute at oral argument.

This basis is alone sufficient to deny Defendant's motion.

2. Hearing

Impermissibly Within 30 Days of Trial

Separately, a motion for summary judgment or adjudication shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise. (Code Civ. Proc., § 437c, subd. (a)(3).) California courts must hear a timely filed motion for summary judgment or adjudication before the start of trial unless there is some indication that the motion is defective under Code of Civil Procedure section 437c. (See *Cole v. Superior Court* (2022) 87 Cal.App.5th 84, 88 [error for court to refuse to hear timely filed motion for summary judgment before trial because of calendaring issues]; *CFP BDA, LLC v. Superior Court* (May 2, 2025) 112 Cal.App.5th 1006, 1009-1010 [error for court to refuse to hear timely filed motion for summary judgment before trial because movant did not comply with local rule requiring papers to be filed within ten days of reserving hearing date].)

Here, Defendant's motion is set for hearing within 30 days of trial, with trial set for September 28, 2026, and this hearing set for September 3, 2026, in contravention of Code of Civil Procedure section 437c, subd. (a)(3). And in contrast to the authorities in the preceding paragraph, a denial based on failure to adhere to this procedural requirement would not be court error because the motion was also untimely filed, as discussed above.

ii. Substantive Grounds

Separately, as reflected in Plaintiff's opposition, substantive reasons exist to deny Defendant's motion.

First, Defendant's briefing incorrectly cites evidence for propositions for which the evidence does not

stand. For example, Undisputed Material Fact ("UMF") No. 1 provides that "Plaintiff Zaki Saleh Mansour is a named insured under California First Edition Personal Auto Policy, policy number 93067-78-50 (the 'Policy') issued by Defendant, whereas the cited evidence (Exhibit A in the Appendix of Exhibits) shows a policy numbered 17966-18-91. (Compare Motion, Separate Statement, UMF No. 1, with Motion, Appendix of Exhibits, Ex. A, p. 1.) This defect seriously undermines relief where the crux of Defendant's motion is that the breach of contract claim fails because evidence shows Defendant complied with its duties to Plaintiff by paying out coverage on all three claims filed by Plaintiff, and because the remaining claims and punitive damages are, in essence, derivative of the breach of contract claims. (Motion, pp. 11-13 [breach of contract], 13-14 [bad faith], 15-16 [elder abuse], 16-17 [punitive damages].) If the evidence in support of the breach of contract argument is unavailing, then the entire chain supporting relief fails.

Second, *arguendo*, even if the Court were to accept that Defendant carried its burden as to the breach of contract claim (Motion, pp. 11-13), Plaintiff would in turn carry his responsive burden by way of *prima facie* evidence of Defendant's failure to make timely payment of coverage under the policy, constituting breach of contract (see, e.g., Opposition, pp. 7-9), a position which Defendant's cursory reply altogether fails to address (see Reply, pp. 1- 3).

d. Conclusion

Based on all the above reasons, Defendant Mid-Century Insurance Company's motion for summary judgment or, in the alternative, summary adjudication is DENIED.

Defendant Mid-Century Insurance Company is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the

tentative, they should arrange to appear remotely.

DATED: September 3, 2026 _____

MARK C. KIM

Judge of the
Superior Court